

HOUSE No. 5375

The Commonwealth of Massachusetts

HOUSE OF REPRESENTATIVES, April 14, 2026.

The committee on Ways and Means to whom was referred the Bill financing long-term improvements to municipal roads and bridges (House, No. 5279), reports recommending that the same ought to pass with an amendment substituting therefor the accompanying bill (House, No. 5375) [Bond Issue: General Obligation Bonds: \$2,237,000,000.00].

For the committee,

AARON MICHLEWITZ.

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In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act financing long-term improvements to municipal roads and bridges.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to finance improvements to the commonwealth's transportation system, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. To provide for a program of transportation development and improvements,
2 the sums set forth in sections 2 through 2B, inclusive, for the several purposes, and subject to the
3 conditions specified in this act, are hereby made available, subject to the laws regulating the
4 disbursement of public funds. The sums made available in this act shall be in addition to any
5 amounts previously appropriated or made available for these purposes.

6 SECTION 2.

7 MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

8 *Highway Division*

6122-2730 For the construction and reconstruction of municipal ways as described in
clause (b) of the second paragraph of section 4 of chapter 6C of the General Laws; provided, that
a city or town shall comply with the procedures established by the Massachusetts Department of
Transportation; provided further, that a city or town may expend, without further appropriation,
for these projects amounts not in excess of the amount provided to the city or town under this
item upon preliminary notice of such amount, which shall be provided by the department to the
city or town not later than March 1 of each year; provided further, that the commonwealth shall
reimburse funds to a city or town under this item, subject to the availability of funds as provided
in section 9G of chapter 29 of the General Laws, within 30 days after receipt by the department
of a request for reimbursement from the city or town; provided further, that the department shall
expend up to \$100,000,000 for construction and reconstruction of municipal ways which shall be
allocated to municipalities based on local road mileage under procedures established by the
department; provided further, that the department shall encourage long-term capital plans to be
developed by a city or town describing how they will use this funding; and provided further, that
the city or town shall provide to the department its certification by the city or town that actual
expenses have been incurred on projects eligible for funding under this item and that the work
has been completed to the satisfaction of the city or town according to the specifications of the
project plan, and in compliance with applicable laws and procedures established by the
department.....\$300,000,000

SECTION 2A.

MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

Highway Division

31 6121-2717 For the bridge and pavement lifecycle asset management program,
32 including, but not limited to, design, construction and repair of, or improvements to, non-
33 federally aided roadway and bridge projects and for the nonparticipating portion of federally-
34 aided projects and for the construction, reconstruction, resurfacing, repair and improvement of
35 pavement and surface conditions on non-federally aided roadways, including, but not limited to,
36 state numbered routes and municipal roadways; provided, that expenditures from this item may
37 include the costs of engineering, design, permitting, climate change adaptation and resilience and
38 other services essential to projects under this item; provided further, that funds may be expended
39 from this item for matching grants to municipalities related to repair of surface conditions on
40 paved and unpaved public ways; provided further, that the department may expend funds from
41 this item to improve the condition of bicycle and pedestrian accommodations related to such
42 roadway, bridge, pavement and resurfacing projects; and provided further, that the department
43 shall consider lifecycle asset management and resilient design with respect to projects under this
44 item.....\$500,000,000

45 6121-2768 For a program of transportation capital projects to support development of
46 housing, including, but not limited to, the costs of planning, design and engineering and other
47 services for those projects rendered by commonwealth employees and consultants; construction
48 and reconstruction of roadways, bridges, pavements, culverts, bicycle and pedestrian
49 infrastructure, safety and accessibility improvements, landscape improvements, lighting, climate
50 resilience and stormwater management improvements; provided further, that the secretary of
51 transportation shall consult with the secretary of housing and livable communities and the
52 secretary for administration and finance on prioritization, selection and implementation of
53 transportation capital projects to be funded from this item; provided further, that this item may be

54 used by the secretary of transportation to provide grants to municipalities for transportation
55 capital projects to support development of housing in those municipalities, in consultation with
56 the secretary of housing and livable communities and the secretary for administration and
57 finance.....\$200,000,000

58 6121-2737 For the Parkway Resilience Improvement and Safety Modernization
59 (PRISM) investment program, an accelerated deferred maintenance, modernization and safety
60 program for multi-modal transportation infrastructure under the care and control of the
61 department of conservation and recreation, including, but not limited to, the planning, design,
62 construction, reconstruction, repair, improvement and rehabilitation of transportation
63 infrastructure; the costs of planning, design and engineering and other services for those projects
64 rendered by commonwealth employees and by consultants; provided, that funds may be
65 expended for roadways, bridges, culverts, pavements, multi-modal transportation infrastructure,
66 bicycle and pedestrian infrastructure, safety and accessibility improvements, intersection and
67 landscape improvements, lighting, traffic signals and signage, climate resilience and stormwater
68 management improvements associated with transportation capital projects on transportation
69 infrastructure under the care and control of the department; provided further, that the secretary of
70 transportation shall consult with the secretary of energy and environment and the secretary for
71 administration and finance on coordination of transportation capital projects to be funded from
72 this item, and the design of any project funded by this item shall be consistent with applicable
73 historic parkways preservation treatment guidelines and parkways master plan to the extent
74 practicable.....\$200,000,000

75 SECTION 2B.

MASSACHUSETTS DEPARTMENT OF TRANSPORTATION

Office of the Secretary

6622-2747 For the purpose of implementing rail improvements pursuant to chapter 161A of the General Laws, including upgrading and modernizing vehicles, new vehicle procurements, planning, design and acquisition of commuter rail locomotives.....\$200,000,000

SECTION 3. Item 6121-2214 of section 2 of chapter 176 of the acts of 2022 is hereby amended by striking out the figure “2,812,457,157” and inserting in place thereof the following figure:- 5,112,457,157.

SECTION 4. Item 6121-2217 of section 2A of said chapter 176 is hereby amended by striking out the figure “1,270,000,000” and inserting in place thereof the following figure:- 2,070,000,000.

SECTION 5. Item 6121-2228 of section 2B of said chapter 176 is hereby amended by striking out the figure “25,000,000” and inserting in place thereof the following figure:- 90,000,000.

SECTION 6. Item 6720-2258 of section 2F of said chapter 176 is hereby amended by striking out the figure “10,000,000” and inserting in place thereof the following figure:- 22,000,000.

SECTION 7. Section 41 of said chapter 176 is hereby amended by striking out the figure “611,800,000” and inserting in place thereof the following figure:- 1,071,800,000.

SECTION 8. Section 42 of said chapter 176 is hereby amended by striking out the figure “1,425,000,000” and inserting in place thereof the following figure:- 2,290,000,000.

SECTION 9. Section 46 of said chapter 176 is hereby amended by striking out the figure “1,750,860,795” and inserting in place thereof the following figure:- 1,762,860,795.

SECTION 10. To meet the expenditures necessary in carrying out sections 2 through 2B, inclusive, the state treasurer shall, upon request of the governor, issue and sell bonds of the commonwealth in an amount to be specified by the governor from time to time but not exceeding, in the aggregate, \$1,400,000,000. All bonds issued by the commonwealth as aforesaid shall be designated on their face, Commonwealth Transportation Improvement Act of 2026, and shall be issued for a maximum term of years, not exceeding 30 years, as the governor may recommend to the general court under section 3 of Article LXII of the Amendments to the Constitution. Notwithstanding section 14 of chapter 29 of the General Laws all such bonds shall be payable not later than June 30, 2066, pursuant to said section 3 of said Article LXII. All interest and payments on account of principal on these obligations shall be payable from the General Fund or the Commonwealth Transportation Fund.

SECTION 11. Notwithstanding any general or special law to the contrary, bonds and interest thereon issued under sections 2 through 2B, inclusive, shall be general obligations of the commonwealth; provided, however, that any bonds issued by the state treasurer under said sections, shall, upon the request of the governor, be issued as special obligation bonds pursuant to section 20 of chapter 29 of the General Laws; provided further, that in deciding whether to request the issuance of particular bonds as special obligations, the governor shall take into account: (i) generally prevailing financial market conditions; (ii) the impact of each approach on the overall capital financing plans and needs of the commonwealth; (iii) any ratings assigned to outstanding bonds of the commonwealth and any ratings expected to be assigned by any nationally-recognized credit rating agency to the bonds proposed to be issued; and (iv) any

120 applicable provisions of a trust agreement or credit enhancement agreement entered into pursuant
121 to said section 2O of said chapter 29. All interest and payments on account of obligations issued
122 under this section as special obligation bonds pursuant to said section 2O of said chapter 29 shall
123 be payable from the Commonwealth Transportation Fund, established in section 2ZZZ of said
124 chapter 29, solely in accordance with said section 2O of said chapter 29, and such bonds shall
125 not be included in the computation of outstanding bonds for purposes of the limit imposed by the
126 second paragraph of section 60A of said chapter 29, nor shall debt service with respect to such
127 bonds be included in the computation of the limit imposed by section 60B of said chapter 29.